

I have added a reference to recent FERC decision in a Kern River case which rejected a contract provision between Kern and Union Pacific which would have given UP priority rights to reduce its CD. This is on page 9.

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To: Alan Comnes/PDX/ECT@ECT, Barry Tycholiz/Enron@EnronXGate, Christi L Nicolay/HOU/ECT@ECT, Dave Perrino/SF/ECT@ECT, Don Black/HOU/EES@EES, Donna Fulton/Corp/Enron@ENRON, jalexander@gibbs-bruns.com, James D Steffes/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, Jennifer Thome/NA/Enron@Enron, Leslie Lawner/NA/Enron@Enron, Paul Kaufman/Enron@EnronXGate, Phillip K Allen/HOU/ECT@ECT, Ray Alvarez/NA/Enron@ENRON, Robert Frank/NA/Enron@Enron, Sandra McCubbin/NA/Enron@Enron, Stephanie Miller/Enron@EnronXGate, Steve Walton/HOU/ECT@ECT, Susan J Mara/NA/Enron@ENRON, Steven P South/Enron@EnronXGate, Randall L Gay/Enron@EnronXGate, Patti Sullivan/Enron@EnronXGate, Kristann Shireman/HOU/EES@EES, Robert Superty/HOU/ECT@ECT, Suzanne Calcagno/Enron@EnronXGate, Ed McMichael/Enron@EnronXGate, George F Smith/Enron@EnronXGate
cc:

Subject: FOR FINAL REVIEW -- ENA Comments in Support of Kern River

Attached for your review and comments are ENA's comments in support of Kern River's petition for a declaratory order relating to SoCal Gas' assertion that it has the first right to expansion capacity now being constructed in the California Emergency Action Project to add 135,000 Mcf/d of capacity to California that would come on-line during July.

The comments must be filed at FERC by Friday, June 15. If you have issues or comments, please contact Leslie Lawner or me as soon as you can. Leslie is at 505-623-6778 and my extension in Houston is 35840. If possible, e-mail us since we will both be traveling or at an off-site meeting beginning mid-day Wednesday.